

Circular Memo.No.352/Spl.C/A1/2007-1, G.A. (Spl.C) Dept., dt.02.08.2007 regarding instructions on sanction of prosecution once sanctioned cannot be withdrawn.

Subject Heading : Prosecution Cases – Sanction of Prosecution once accorded cannot be withdrawn or rescinded by the Government – Instructions – Reiterated.

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Ref : Cir.Memo.No.266/Spl.C/A1/2003-2, G.A. (Spl.C) Dept., dt.09.06.2004.

All the Departments of Secretariat are informed that the High Court of Andhra Pradesh in its Judgment in W.P.No.4231/2001, dt.21.01.2003 has observed that the decision to withdraw from the prosecution should emanate from the Public Prosecutor and when the concerned Public Prosecutor comes forward with a memo. before the trial court seeking permission to withdraw, the trial court has consider the same on the principles laid down by the Supreme Court in the said decision. While communicating the above Judgment of the High Court, all Departments were requested to take into account the Judgment while processing the cases for withdrawal of prosecution in the reference cited.

2. It has been brought to the notice that some of the Departments of Secretariat are issuing orders for withdrawal of Prosecution without taking into account the instructions issued and the Judgment of High Court.

3. The Hon'ble High Court has also observed in W.P.No.745/2006 that the Departments when moved for permission for withdrawal from prosecution must be vigilant and inform themselves fully before granting consent. While it would be obnoxious and objectionable for a Public Prosecutor to allow himself to be ordered about, he should apprise himself from the Government and thereafter appraise the court, the host of factors relevant for withdrawal of the cases.

4. After examining the matter, the instructions issued in the reference cited reiterated again and all Departments of Secretariat are requested to follow the instructions in this regard scrupulously and any deviation will be viewed seriously.